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Flock announces privacy changes as Bay Area cities split over license plate cameras

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Associated Press

Cars pass by a Flock license plate reading camera May 15, in Eugene, Oregon. Sen. Ron Wyden of Oregon expressed privacy and security concerns with Flock cameras in a letter last October.



By **NEW YORK TIMES** and **BAY AREA NEWS GROUP**

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By Aruni Soni | The New York Times | and Bay Area News Group

Flock Safety, a company facing increasing scrutiny of its nationwide car-tracking technology, announced several updates Thursday that it said would improve privacy protections and prevent misuse.

The company's network of 120,000 cameras, which can read license plates, are used by 7,000 law enforcement agencies across the country. Police departments say the systems help solve crimes. But reports of misuse by law enforcement, along with anxiety over the technology's ability to surveil ordinary people, has led to protests and prompted some cities to end their contracts with the company.

"I realized we had a responsibility to do more," said Garrett Langley, CEO of Atlanta-based Flock.

Some cities, including Los Angeles and Dayton, Ohio, have stopped using Flock cameras in order to prevent immigration authorities from accessing their data. To provide more local control, the company said Thursday that it would allow individual police departments to restrict what other law enforcement agencies can see — allowing them, for example, to access data to find stolen vehicles but not for immigration violations, the company said. It also is shortening the default time for data retention to a week, down from 30 days, though departments could change those settings.

That local discretion is already on display across the Bay Area, where

San Jose continues to operate nearly 500 cameras. The City Council voted in March to reduce the default data-retention period from one year to 30 days, prohibit cameras from capturing vehicles entering or leaving abortion clinics, healthcare facilities that primarily provide gender-affirming care, consulates, embassies and houses of worship and impose tighter requirements on outside agencies searching the database. City policy bars searches for immigration enforcement or monitoring legally protected activities, though the system remains the subject of state and federal lawsuits challenging warrantless surveillance.

“The ALPR cameras are the linchpin of everything we’re trying to do with technology here at San Jose PD,” Police Chief Paul Joseph told the Bay Area News Group in February.

Other South Bay governments have pulled the plug. Mountain View terminated its contract after an audit found that federal and other agencies had access the city had not authorized. Los Altos Hills canceled its contract amid concerns about privacy, data sharing, cost and effectiveness. Santa Clara County prohibited the Sheriff’s Office from using Flock, requiring it to stop accessing and operating cameras in Cupertino and Saratoga.

The East Bay is similarly divided. Oakland approved a two-year, \$2.25 million Flock contract in December. Oakland police reported that the city’s cameras logged nearly 639 million license plate reads in 2025, with data retained for 30 days. Alameda County supervisors voted in June to extend a broader \$2.4 million Flock contract through December 2027 for surveillance technology used in unincorporated communities.

Berkeley extended its existing license plate reader system for up to a year but rejected a proposed expansion. Richmond voted to reactivate its readers through the end of 2026 after several months offline. “Public safety and civil liberties are not mutually exclusive ideas,” Richmond Police Chief Tim Simmons told the Bay Area News Group in March. El Cerrito went the other direction, shutting down its 40 readers in June and beginning their removal in July after an audit found that federal agencies had been able to search the city’s data without the Police Department’s knowledge.

Reducing the length of time data is retained is a positive development, said Chad Marlow, senior policy counsel from the American Civil Liberties Union. But he noted that it is easy for police departments to keep the data for longer.

The heightened local control, too, is “good in theory,” Marlow said, but has never been proved to work. A similar program was rolled out last year to block impermissible searches, he said, but Flock customers quickly found a workaround.

“When you put all this together, what you see is Flock treating privacy issues as public relations issues,” he said. “Flock is giving this response because it knows its company is in serious, serious trouble.”

Langley said the updates have been in the works for months. Although Flock announced steps to assuage privacy concerns, critics still view legislative changes as the ultimate avenue to rein in surveillance tech like Flock’s.

“What we need are laws,” said Barry Friedman, law professor and faculty director of the Policing Project at New York University. “The government should never be collecting our information without a law that gives it authority.”

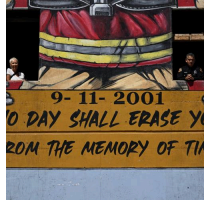
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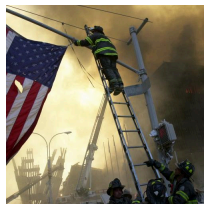
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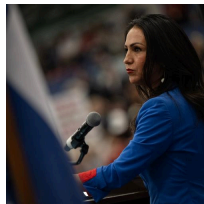
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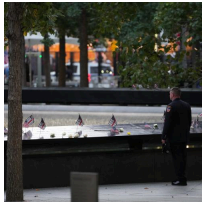
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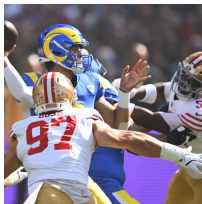
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